

Court No. - 21

Case :- WRIT - C No. - 15394 of 2023

Petitioner :- Sant Lal

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Santosh Kumar Srivastava, Karuna Srivastava

Counsel for Respondent :- C.S.C., Chetan Chatterjee

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

The petitioner has challenged the notice of provisional assessment dated 24.02.2023 issued by respondent No. 2 in a case of theft of electricity. The impugned assessment notice grants 15 days' time to the petitioner to file objection against the proposed assessment.

Counsel for the petitioner states that the petitioner had filed objection against the said notice on the same day but it has not been decided so far.

Having regard to the above facts, we dispose of the petition with direction to respondent No. 2 to finalize the assessment proceedings strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 8.5.2023

Jaswant